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Colombia: Victims Face Reprisals for Reclaiming Land

Displaced People Trying to Return Home Suffer Threats, Attacks



(Bogotá) – Internally displaced Colombians face killings and widespread death threats for attempting to reclaim their land, Human Rights Watch said in a report released today. Abuses targeting displaced families for trying to return home almost always go unpunished, as do the original crimes of forcing them off their land and stealing it.

The 184-page report, “[The Risk of Returning Home: Violence and Threats against Displaced People Reclaiming Land in Colombia](#),” documents killings, death threats, and new incidents of forced displacement committed against displaced Colombians in relation to their efforts to recover their land. Many of those targeted are reclaiming property through the Victims Law, which was enacted by President Juan Manuel Santos in 2011 to restore millions of hectares of stolen and abandoned land to displaced people.

“President Santos is making a serious and unprecedented effort to return land, but violence and intimidation against displaced families attempting to return home threaten to sabotage his banner human rights initiative,” said [José Miguel Vivanco](#), Americas director at Human Rights Watch. “Unless Colombia starts to ensure justice for abuses against land claimants, they will continue to be killed, threatened, and displaced for seeking to reclaim what’s theirs.”

Since 1985, abuses and violence associated with [Colombia](#)’s internal armed conflict have driven more than 4.8 million Colombians from their homes, generating the world’s largest population of internally displaced people. Displaced Colombians are estimated to have left behind 6 million hectares of land, much of which armed groups, their allies, and others seized and still hold.

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mechanisms – from the states of Antioquia, Bolívar, Cesar, Chocó, Córdoba, La Guajira, Sucre, and Tolima, as well as Bogotá.

Human Rights Watch documented 17 cases of killings of displaced land claimants and leaders since 2008, in which 21 people died, in circumstances that provide compelling evidence the attacks were motivated by the victims' activism.

Human Rights Watch also documented more than 80 cases in which victims had received serious threats, as well as over 30 cases of new displacement in which restitution claimants fled their homes yet again because of abuses related to their efforts to reclaim land, or similar activism.

Official data obtained through information requests shows that these documented cases of killings, threats, and renewed displacement are part of a wider pattern. As of August 2013, the Attorney General's Office reported that it was investigating 49 cases of killings of "leaders, claimants, or participants in land restitution matters" committed in half of Colombia's 32 states since 2000. In these reported cases, 56 people were murdered.

Colombia: Victims Threatened for Reclaiming Land



Since January 2012 more than 500 displaced land claimants and their leaders from over 25 states have reported to authorities that they had received threats. The government has determined that upward of 360 threatened claimants and leaders are at "extraordinary risk" because of their land restitution activities.

"The ongoing threats and attacks are entirely predictable given Colombia's chronic failure to deliver

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Moreover, justice authorities have rarely prosecuted the people who originally displaced claimants and stole their land.

- Of the more than 17,000 open investigations into cases of forced displacement handled by the main prosecutorial unit dedicated to pursuing such crimes throughout Colombia, fewer than 1 percent have led to a conviction.
- As of January, the unit had obtained a total of just five convictions for cases of forced displacement in Antioquia, Bolívar, Cesar, Meta, and Tolima, the five states with the highest number of restitution claims filed in Colombia at the time, and where at least 1.7 million people have been displaced since 1985, according to government data.

The lack of justice for forced displacement and land theft means that those most interested in retaining control of the wrongfully acquired land often remain off the radar of authorities and readily able to violently thwart the return of the original occupants, Human Rights Watch said.

Authorities' failure to significantly curb the power of successor groups to paramilitaries also poses a direct threat to land claimants' security. These groups inherited the criminal operations of the right-wing United Self-Defense Forces of Colombia (AUC) paramilitary coalition following its deeply flawed demobilization process implemented by the previous administration. Thus far, successor groups have carried out a large share of the threats and attacks targeting displaced land claimants.

In addition, third parties who took over lands after original occupants were forced out – sometimes in collusion with paramilitaries – as well as left-wing Revolutionary Armed Forces of Colombia (FARC) guerrillas, have also targeted claimants and leaders who tried to get their land back.

The government's protection program, which is unparalleled in the region, has provided hundreds of at-risk land claimants and leaders with protection measures, such as bulletproof vests and bodyguards. While helpful, these are essentially palliative measures, since they do not rein in or hold accountable the armed groups, criminal mafias, and others who are threatening claimants' lives, Human Rights Watch said.

The limitations of the government's protection program are evidenced by the fact that it often relocates threatened land claimants because authorities cannot guarantee their safety where they live. Since January 2012, the program has temporarily relocated more than 90 land claimants and leaders to new areas due to serious threats against them.

As of June 2013, the Restitution Unit, charged with implementing the Victims Law, had obtained rulings ordering restitution for 1 percent of the more than 43,000 land claims it had received. By July, just one family had returned to live on their land as a result of rulings under the Victims Law

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If Colombia does not take further action to stop the abuses, the problem is likely to get much worse, Human Rights Watch said. The level of threats and violence will almost certainly increase as the thousands of pending land claims progress, families start returning home, and those intent on keeping wrongfully acquired land see their interests more directly affected.

Prosecutors should work with land restitution authorities to vigorously pursue crimes against displaced land claimants in areas where restitution is being carried out. They should coordinate their efforts to take advantage of the concentration of complaints concerning related cases. That will allow justice authorities to carry out systematic investigations of forced displacement, land takeovers, threats, killings, and other abuses against displaced people seeking to reclaim land.

The Colombian government should also improve efforts to dismantle paramilitary successor groups, especially by rooting out their corrupt ties to local officials in certain regions, Human Rights Watch said.

“In Colombia, trying to get your land back often means assuming risk and living in fear, whereas there is virtually never a cost for those who force farmers off their land, steal it, and attack them for attempting to reclaim it,” Vivanco said. “Bulletproof vests and bodyguards won’t solve the problem. Meaningful protection will require holding the attackers accountable, and breaking the grip paramilitary mafias still have in areas where displaced families are trying to return.”

Cases of threats and attacks against displaced land claimants and leaders Human Rights Watch documented include:

- Repeated abuses – including death threats, new incidents of forced displacement, and killings – since 2008 against more than a dozen members of the Urabá chapter of Tierra y Vida, a group of displaced people that works for land restitution. In one case, the Tierra y Vida leader, Albeiro Váldez Martínez, returned to his farm in the town of Totumo, Antioquia in November 2009. He reported being threatened by the cattle rancher who had taken over the farm, and was found dead in May 2010. The following month, the mayor returned Váldez’s land to the rancher. No one has been charged with Váldez’s killing, and his surviving family members who kept trying to reclaim the land continued to receive threats.
- In 2012 and 2013, repeated threats against leaders of the Carmen de Bolívar Mesa de Víctimas, a municipal committee created to ensure victims’ participation in carrying out the Victims Law, forced six of them to abandon the town, at least temporarily.
- Ermes Vidal Osorio and Ever Cordero Oviedo, two recognized leaders of displaced people from the Mesa de Víctimas committee in Valencia, Córdoba, were murdered within a three

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- Leaders campaigning for the return of displaced people to their land in southern Tolima state reported getting frequent, serious threats from FARC guerrillas. For example, Germán Bernal and other displaced leaders said that during obligatory meetings held by the FARC in rural areas of southern Tolima, the guerrillas announced their opposition to displaced people returning home and declared their leaders “military targets.”
- Residents and leaders who returned to collectively owned territories along the Curvaradó and Jiguamiandó river basins have suffered numerous abuses, including the March 2012 abduction and murders of Manuel Ruiz and his 15-year-old son. The sequence of events in the abduction raises serious questions about the local police’s possible toleration of operations by the paramilitary successor group members accused of killing Ruiz and his son.

Sources

[1] Victims Unit, Colombia government agency responsible for managing registry of victims.

[2] Colombia Agricultural Ministry

[3] Restitution Unit, Colombia government agency responsible for implementing the Victims Law.

[4] Restitution Unit

[5] Restitution Unit

[6] Victims Unit

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